

Policy Document - Tata AIA Life Guaranteed Return Insurance Plan (110N152V04)

PART B

Tata AIA Life Guaranteed Return Insurance Plan is an Individual, Non-linked, Non-participating Life Insurance Savings plan.

1.1. Basic definitions

- “**Age**” means age as on the last birthday; i.e. the age of the Life Insured in completed years as on Date of Commencement of Policy and is as shown in the Policy Schedule.
- “**Annualised Premium**” shall be the Premium payable in a year chosen by the Policyholder, excluding Extra Premiums, loading for Modal Premiums, taxes and rider premiums, if any; as specified in the Policy Schedule.
- “**Claimant**” means the person entitled to receive the Policy benefits and includes the Policyholder, surviving Life Insured, the nominee, the assignee, the legal heir, the legal representative(s) or the holder(s) of succession certificate as the case may be;
- “**Date of Inception/Commencement of Policy**” is the date mentioned on the Policy Schedule.
- “**Date of Commencement of Risk**” means the date as specified in the Policy Schedule.
- “**Date of Maturity of Policy**” means the date specified in the Policy Schedule on which the Policy Term expires.
- “**Extra Premium**” means an additional amount charged by Us, as per Our Underwriting Policy, which is determined on the basis of disclosures made by You in the Proposal Form or any other information received by Us including medical examination report of the Life Insured.
- “**Grace Period**” means a period of 15 (Fifteen) days from the due date of the unpaid Premium for monthly Premium payment mode and 30 (Thirty) days from the due date of unpaid Premium for all other Premium payment mode.
- “**Guaranteed Addition/s**” shall refer to the amount of benefit payable at the rate of 5% of the Guaranteed Maturity Benefit and shall accrue at a simple rate at the end of each completed Policy Year, throughout the Policy Term and shall be payable shall be payable on death or maturity whichever is earlier, provided all due Premiums are paid.
- “**Guaranteed Annual Income**” (GAI) shall refer to the amount of benefit payable annually, as per the plan option selected –

- **Option II – Regular Income:**

Premium Payment Term	Percentage of one Annualized Premium
10	186.05% of Annualised Premium
12	208.90% of Annualised Premium

- **Option III – Whole Life Income:**

GAI for Single Life = Rate A x (Total Premiums Payable up to Rs.125,000/-) + Rate B x (Total Premiums Payable in excess of Rs.125,000/-)

GAI for Joint Life = Rate A x (Total Premiums Payable up to Rs.150,000/-) + Rate B x (Total Premiums Payable in excess of Rs.150,000/-)

Please refer Company’s website or visit nearest branch for more details on the applicable Rate A or Rate B.

- “**Guaranteed Surrender Value**” shall be the minimum Surrender Value computed in accordance with Clause 4.2.1 of Part D, which is guaranteed by Us. The Guaranteed Surrender Value will be determined in the Policy Year in which the Surrender is effected.
- “**Income Term**” shall commence and applicable as per the plan option and Policy Term chosen, as below:

- **Option II – Regular Income:** Income Term shall commence from end of the year after the Date of Maturity of Policy -

Policy Term (Years)	Income Term (Years)/(Period)
11	10/(End of 12 th to end of 21 st Policy Year)

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13	12/(End of 14 th to end of 25 th Policy Year)
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- **Option III – Whole Life Income:** Income Term shall commence from the end of the year after the Date of Maturity of Policy and shall continue till the death of the Life Insured (in case of Single Life) or last surviving Life Insured (in case of Joint Life).
- **“IRDAI/Authority”** means the Insurance Regulatory and Development Authority of India.
- **“Lapsed Policy”** means a Policy which has not acquired the Surrender Value and where the due Premium has not been received till the expiry of the Grace Period.
- **“Life Insured”** means the person whose life is insured or assured under the Policy and is shown in the Policy Schedule.
- **“Nominee”** means the person named in the Policy Schedule who has been nominated by the Life Assured in accordance with Section 39 of the Insurance Act, 1938 as amended from time to time to receive benefits in respect of this Policy.
- **“Policy”** means the contract of insurance entered into between You and Us as evidenced by this document, the Proposal Form, the Policy Schedule and any additional information/document(s) provided to Us in respect of the Proposal Form along with any written instructions from You subject to Our acceptance of the same and any endorsement issued by Us.
- **“Policy Anniversary”** refers to the annual anniversary of the Date of Commencement of Policy.
- **“Policy Schedule”** means the policy schedule and any endorsements attached to and forming part of the Policy and if any updated Schedule is issued, then, the Schedule latest in time.
- **“Policy Year”** means a period of 12 (Twelve) months commencing from the Date of Commencement of Policy and every Policy Anniversary thereafter.
- **“Premium”** means the amount specified in the Policy Schedule, payable by you, by the due dates to secure the benefits under the Policy, excluding applicable tax, cesses or levies, if any.
- **“Proposal Form”** means the form filled in and completed by You for the purpose of obtaining insurance coverage under the Policy;
- **“Reduced Paid Up”** means a Policy which has acquired Surrender Value, if subsequent Premiums remain unpaid at the end of Grace Period, the Policy will be converted into a Reduced Paid-up Policy by default;
- **“Revival Period”** means a period of 5 (five) years from the due date of the first unpaid Premium.
- **“Special Surrender Value”** means the Special Surrender Value computed in accordance with Clause 4.2.1 of Part D.
- **“Special Surrender Value Factors”** are factors determined by Us in consultation with and approved by the IRDAI to compute the Special Surrender Value, which can be revised by Us on the basis of Our experience from time to time in consultation with and approval of the IRDAI.
- **“Surrender Value”** means an amount payable on Surrender of this Policy, which will be the higher of the Guaranteed Surrender Value or the Special Surrender Value;
- **“Total Premiums Paid”** means amount equal to the total Premiums paid excluding any Extra Premiums, any rider premiums and taxes, if any;
- **“Total Premiums Payable”** refers to an amount equal to the Annualised Premium multiplied by the Premium Payment Term of the Policy.
- **“Underwriting Policy”** means our then prevailing Underwriting Policy as approved by Our board of directors;
- **“We”, “Us”, “Our” or “Company”** refers to Tata AIA Life Insurance Company Limited.
- **“You” or “Your”** means the Policyholder of this Policy.

Whenever the context requires, the masculine form shall apply to feminine and singular terms shall include the plural.

2. PART C

2.1. Benefits

The benefits shall depend on the plan option chosen by You at the inception of the Policy and cannot be changed once chosen.

2.1.1. Maturity Benefit

As per the plan option chosen by you, provided the Policy is in force, We shall pay at Date of Maturity of Policy –

2.1.1.1. Option I – Endowment:

- a) Guaranteed Maturity Benefit, and
- b) Guaranteed Additions.

“**Guaranteed Maturity Benefit**” shall refer to the amount of benefit which is guaranteed to be paid on Date of Maturity of Policy, and shall be –

$$\text{Guaranteed Maturity Benefit} = (\text{Guaranteed Maturity Benefit Factor as per Annexure A}) \times \text{Total Premiums Payable}$$

Guaranteed Addition/s shall not accrue once the Policy has been converted to a Reduced Paid-up Policy.

Upon payment of this benefit, the Policy shall terminate and no other benefit shall be payable.

2.1.1.2. Option II - Regular Income: GAI during Income Term.

You may opt to receive commuted value of the future GAI in lump sum at the Date of Maturity of Policy, discounted at 7.05% per annum. This discounting rate is not guaranteed and is subject to change based on prevailing bond yields (aligned to 10 year G-sec). However, any change in the methodology/formula shall be subject to IRDAI approval. Any change in SSV factors shall be filed with the Authority and shall be intimated to You from time to time.

2.1.1.3. Option III - Whole Life Income: GAI during Income Term.

At proposal stage, You may also opt to receive the GAI on monthly basis payable at the end of the each month after the Date of Maturity of Policy, where the Monthly Guaranteed Annual Income shall be equal to –

$$\text{Monthly Guaranteed Annual Income} = 96\% \text{ of GAI} \times 1/12$$

This option to receive the GAI on monthly basis cannot be altered once chosen.

2.1.2. Death Benefit

2.1.2.1. Option I – Endowment or Option II - Regular Income:

On death of the Life Insured during the Policy Term, provided the Policy is in force, We shall pay Sum Assured on Death, plus Guaranteed Additions (if any, only under Option I), to the Claimant.

“**Sum Assured on Death**” means highest of the following:

- a) 10 times the Annualised Premium for Age less than 45 years or 7 times the Annualised Premium for

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- Age 45 and above;
- b) 105% of the Total Premiums paid, up to the date of death;
 - c) Guaranteed Maturity Benefit; and
 - d) Basic Sum Assured.

The “Basic Sum Assured” shall be as mentioned in the Policy Schedule.

The “Guaranteed Maturity Benefit” for plan option II shall be equal to the commuted value of the future GAI in lump sum at Date of Maturity of Policy, discounted at 7.05% per annum.

On death of the Life Insured during the Income Term under Option II, We shall pay all the future GAI to the Claimant. The Claimant also has the option to receive the commuted value of the future GAI in lump sum, discounted at 7.05% per annum. This discounting rate is not guaranteed and is subject to change based on prevailing bond yields (aligned to 10 year G-sec). However, any change in the methodology/formula shall be subject to IRDAI approval.

The Policy will terminate on payment of Death Benefit for Life Insured and no other benefits shall be payable under the Policy.

2.1.2.2. Option III - Whole Life Income:

I) Death during Policy Term:

On death of the Life Insured during the Policy Term, provided the Policy is in force, We shall pay Sum Assured on Death, to the Claimant.

“Sum Assured on Death” means highest of the following:

Single Life/Joint Life –

- a) 1.25 times the Single Premium in case of Single Pay and 7 times the Annualised Premium in case of Premium Paying Term of 5 years;
- b) 105% of all the Total Premiums paid, up to the date of death;
- c) Guaranteed Maturity Benefit; and
- d) Basic Sum Assured.

II) Death after Policy Term:

- **Single Life** - On death of the Life Insured after the Policy Term, We shall pay Total Premiums Paid to the Claimant.
- **Joint Life** – On death of the last surviving Life Insured after the Policy Term, We shall pay Total Premiums Paid to the Claimant.

“Guaranteed Maturity Benefit” in case of Option III, shall be equal to the Guaranteed Annual Income multiplied by the GMB Factors provided in Annexure A.

“Basic Sum Assured” as mentioned in the Policy Schedule.

The Policy will terminate on payment of Death Benefit for Life Insured (in case of Single Life) or last surviving Life Insured (in case of Joint Life) and no other benefits shall be payable under the Policy.

2.1.3. Premium details

2.1.3.1. Payment of Premium

- You can pay Premium at any of Our offices or through our website www.tataaia.com or by any other means, as informed by Us. Any Premium paid by You will be deemed to have been received by Us only after the same has been realized and credited to Our bank account.
- Collection of advance premium shall be allowed within the same financial year for the Premium due in that financial year. However, where the Premium due in one financial year is being collected in advance in earlier financial year, the Company may collect the same for a maximum period of three months in advance of the due date of the Premium.
- The Premium so collected in advance shall only be adjusted on the due date of the Premium.

2.1.3.2. Change of frequency of Premium payment

You may change the frequency of Premium payments by written request. Subject to our minimum Premium requirements, Premiums may be paid on monthly, quarterly, half-yearly or annual mode at the Premium rates applicable on the Date of Commencement of Policy. Alteration in the frequency of Premium payment may lead to a change in the Premium. No alterations are permissible under the Policy except change in frequency of Premium payment.

The loading on Premium shall be applicable as below:

Mode	Modal Loading
Single Premium	Multiply Annual Premium Rate by 1
Annual	Multiply Annual Premium Rate by 1
Half - Yearly	Multiply Annual Premium Rate by 0.51
Quarterly	Multiply Annual Premium Rate by 0.26
Monthly	Multiply Annual Premium Rate by 0.0883

2.1.3.3. Default in Premium Payment

After payment of the first Premium, failure to pay a subsequent Premium on or before its due date will constitute a default in Premium payment.

2.1.3.4. Grace period

- The Premium is due and payable by the due date specified in the Schedule. If the Premium is not paid by the due date, You may pay the same during the Grace Period without any interest. The Policy will remain in force during this period.
- During the Grace Period, if the overdue Premium is not paid and the Life Insured dies, then We shall pay the Death Benefit after deducting the due Premium (without interest) for the Policy Year.

2.1.4. Payment of benefits

- The benefit under the Policy shall be payable to the Claimant.

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- Once the benefits under this Policy are paid to a Claimant, the same shall constitute a valid discharge of Our liability under this Policy.

2.1.5. Change in address of Policyholder or Nominee

In order to provide better services, We request you to intimate us in the event of any change in the address of the Policyholder or the Nominee.

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3. PART D

3.1. Free look period

You have a free look period of 15 days from the date of receipt of the policy document and period of 30 days in case of Policy obtained through distribution channels like Web Aggregators Online mode and direct sales (other than in person), to review the terms and conditions of the Policy. If You disagree to any of those terms or conditions, You have the option to return the Policy for cancellation, stating the reasons for objection and be entitled to a refund of the premiums paid without interest after deduction of proportionate risk premium, stamp duty and medical examination cost along with applicable taxes and cesses or levies, if any.

3.2. Non forfeiture provisions

3.2.1. Surrender Benefit:

The Policy may be surrendered at any point during the Policy Term, however it shall acquire a Surrender Value only if:

- Single Premium – throughout the Policy Term;
- at least 2 (two) full years' Premiums have been paid, in case of Policy other than Single Premium

Guaranteed Surrender Value (GSV) is equal to GSV Factor on Premiums multiplied by Total Premiums Paid plus GSV Factor on Guaranteed Additions multiplied by accrued Guaranteed Additions (if any)

Special Surrender Value (SSV) is equal to SSV Factor x [Reduced Paid Up Factor x Guaranteed Maturity Benefit plus accrued Guaranteed Additions (if any)]

GSV Factor on Premiums, SSV factors and GSV Factor on Guaranteed Additions will be as applicable at the time of surrender and are as per table annexed as '**Annexure B**' herein.

3.2.2. Lapsation of Policy

If the Premium is not paid within the Grace Period and if the Policy has not acquired Surrender Value, the Policy will lapse from the due date of first unpaid Premium and no benefits will be payable.

3.3. Reduced Paid-up:

Provided the Policy has acquired Surrender Value, if subsequent Premium remain unpaid at the end of Grace Period, the Policy will be converted into a Reduced Paid-up Policy by default.

Reduced Paid-up policy is a default non forfeiture benefit. Reduced Paid-Up Policy, shall continue as Reduced Paid-up Policy unless revived within Revival Period by payment of all due Premiums together with interest as mentioned in Clause 4.4 ("Revival") of Part D.

In case of Reduced Paid-up Policy, the benefit shall be payable as under:

- a. Maturity Benefit:** The benefit shall be payable as -

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- i) **Option I - Endowment:** Maturity benefit (As Clause 3.1.1.1 of Part C) x Reduced Paid up Factor.
- ii) **Option II – Regular Income:** Maturity benefit (As per Clause 3.1.1.2 of Part C) x Reduced Paid up Factor.
- iii) **Option III - Whole Life Income:** Maturity benefit (As per Clause 3.1.1.3 of Part C) x Reduced Paid up Factor.

b. Death Benefit:

- **Death during Policy Term** – On death of the Life Insured during the Policy Term, We shall pay -

- i) **Option I - Endowment:** Sum Assured on Death (As per Clause 3.1.2.1 of Part C) *multiplied* by Reduced Paid up factor, along with the accrued Guaranteed Addition, if any.
- ii) **Option II– Regular Income:** Sum Assured on Death (As per Clause 3.1.2.1 of Part C) *multiplied by* Reduced Paid up factor.
- iii) **Option III - Whole Life Income:** Sum Assured on Death (As per Clause 3.1.2.2 'I' of Part C) *multiplied by* Reduced Paid up factor.

This benefit shall be subject to a minimum of 105% of Total Premiums Paid up to the date of death.

- **Death after Policy Term** -

- i) **Option I - Endowment:** No benefit shall be payable.
- ii) **Option II – Regular Income:** All the future GAI shall be payable to the Claimant. The Claimant also has the option to receive the commuted value of the future GAI in lump sum, discounted at 7.05% per annum. This discounting rate is not guaranteed and is subject to change based on prevailing bond yields (aligned to 10 year G-sec). However, any change in the methodology/formula shall be subject to IRDAI approval. Any change in SSV factors shall be filed with the Authority and shall be intimated to You from time to time.
- iii) **Option III - Whole Life Income:** This benefit is same as Clause 3.1.2.2 'II' of Part C.

Where, “**Reduced Paid Up Factor**” shall be equal to -

(Number of Premiums paid) divided by (Number of Premiums Payable during the entire Premium Payment Term)

- c. **Surrender Benefit** – This benefit is same as per Clause 4.2.1 of Part D.

3.4. Revival

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If there is default in Premium Payment beyond the Grace Period and subject to the Policy not having been surrendered, it may be revived, in accordance with Underwriting Policy within Revival Period but before the Date of Maturity of Policy, subject to: (i) Your written application for revival; (ii) production of Insured's current health certificate and other evidence of insurability; and (iii) payment of all overdue Premiums with interest.

The applicable interest rate for revival is determined using the SBI (State Bank of India) [or any other public sector undertaking bank] domestic term deposit rate for tenure '1 year to less than 2 years', plus 2%. Any alteration in the formula will be subject to prior approval of IRDAI. The simple interest rate applicable as on 1st October 2019, is 8.50% p.a. [i.e. SBI interest rate of 6.50% (which rate may be revised from time to time) + 2%].

Upon revival, the benefits of the Policy shall be restored with effect from the date of revival.

3.5. Loan

You may apply for a loan up to 80% of Surrender Value provided the Policy acquires Surrender Value. On availing loan, the Policy must be assigned to Us. The Policyholder shall be liable to pay interest on the loan as below:

- Daily interest shall accrue on loan at the prevailing SBI (State Bank of India) [or any other public sector undertaking bank] domestic term deposit interest rate for tenure '1 year to less than 2 years' + 2%. This formula will be reviewed annually and only altered subject to prior approval of IRDAI. The interest rate applicable as on 1st October 2019, is 8.50% p.a. [i.e. SBI interest rate of 6.50% (which rate may be revised from time to time) + 2%] compounded annually;
- Interest shall be payable on each Policy Anniversary after the loan date and until the loan is repaid;
- Any unpaid interest shall be added to the principal loan and bear interest at the same rate. At any time while this Policy is in-force, You may repay the principal loan and accrued interest, or any part of the loan;
- When the loan with accrued interest exceeds the Surrender Value, the Policy will be terminated. Residual amount, if any, will be refunded to the Policyholder.
- There shall be no discretion of the Company in granting the loan to identical/similar Policyholders. Further, there shall be no discretion of the Company in the quantum of loan granted (subject to the quantum being within permissible limits).

4.6. Auto Vesting

Where the Policy is issued on the life of a minor, the Policy shall automatically vest in the Life Insured on his/her attaining age of majority. On vesting, the Company shall recognize the Life Insured to be the holder of the Policy.

4.PART E

Not Applicable for this Product

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5. PART F

5.1. Fraud, Misrepresentation and Forfeiture

Any non-disclosure, fraud or mis-representation under the Policy shall be dealt in accordance with Section 45 of the Insurance Act, 1938 as amended from time to time.

The simplified version of the provisions of Section 45 of the Insurance Act, 1938 is enclosed in **Annexure 4** for reference.

5.2. Exclusions

5.2.1. Suicide

In case of death due to suicide within 12 months from the Date of Commencement of Risk under the Policy or from the date of revival of the Policy, as applicable, the Claimant of the Policyholder shall be entitled to at least 80% of the Total Premiums Paid till the date of death or the Surrender Value available as on the date of death whichever is higher, provided the Policy is in force.

5.3. Misstatement of Age

Declaration of the correct Age of the Life Insured is important for Our underwriting process and calculation of Premiums payable under the Policy. If the Age declared in the Proposal Form is found to be incorrect at any time during the Policy Term or at the time of claim, We may revise the Premium with interest and/or applicable benefits payable under the Policy in accordance with the Premium and benefits that would have been payable, if the correct Age would have made the Life Insured eligible to be covered under the Policy on the Date of Commencement of Policy. If at the correct Age the Life Insured is not insurable under this Policy pursuant to our Underwriting Policy, the Policy shall be void ab-initio and the Company will refund the Total Premiums Paid without interest after deducting all charges incurred by the Company under the Policy.

5.4. Nomination

Nomination allowed as per provisions of Section 39 of the Insurance Act 1938 as amended from time to time. The simplified version of the provisions of Section 39 is enclosed in **Annexure 3** for reference.

5.5. Assignment

Assignment shall be as per Section 38 of the Insurance Act 1938 as amended from time to time. The simplified version of the provisions of Section 38 is enclosed in '**Annexure 2**' for reference.

5.6. Loss of Policy document

If the Policy document is lost or destroyed, then at the request of the Policyholder, the Company will issue a duplicate Policy document duly endorsed to show that it is issued following the loss or destruction of the original Policy document. Upon the issuance of the duplicate Policy document, the original Policy document immediately and automatically ceases to have any validity. The Company will charge a fee of Rs. 250/- along with the applicable tax and surcharge/cess, for the issuance of a duplicate Policy document. These charges are subject to revision by the Company from time to time.

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5.7. Taxes

All Premiums and interest payable under the policy are exclusive of applicable taxes, duties, surcharge, cesses or levies which will be entirely borne/ paid by the Policyholder, in addition to the payment of such Premium or interest. Tata AIA Life shall have the right to claim, deduct, adjust and recover the amount of any applicable tax or imposition, levied by any statutory or administrative body, from the benefits payable under the Policy.

5.8. Termination of Policy:

This Policy will terminate upon the happening of any of the following events:

1. On the date of refund of premium under FreeLook request.
2. On the date of payment of the death claim in accordance with the provisions of this Policy;
3. On the expiry of the Revival Period, if the Lapsed Policy has not been revived;
4. On the date of payment of Surrender Benefit of this Policy; or
5. On the date of payment of last Guaranteed Annual Income payout in accordance with the provisions of this Policy.

5.9. Claims

Notice of Claim – All cases of death must be notified, within a period of 90 days, to us in writing. However, We may condone delay on merit for delayed claims where the reason for delay is proved to be for reasons beyond the control of the Claimant. In case of any delay on the part of the Company to process the claim within extant regulatory timeline, We shall pay interest as may be prescribed by the IRDAI from time to time.

Please note that all death claims will be payable to the Claimant. Appropriate forms and supporting documents must be submitted, at the Claimant's expenses, within 90 days after the date the Insured event happens, unless specified otherwise. A list of primary claim documents listing the normally required documents is attached to the Policy. Submission of the listed documents, forms or other proof, however, shall not be construed as an admission of liabilities by the Company.

We reserve the right to require any additional proof and documents in support of the claim.

5.9.1. Claims requirements

Death claims requirements

For processing the claim request under this Policy, we will require the following documents:

Type of Claim	Requirement
<i>Death</i> (all causes of death other than the Accidental Death)	a) Claim Forms Part I: Application Form for Death Claim (Claimant's Statement) along with NEFT form Part II: Physician's Statement - to be filled by last attending physician
	b) Death Certificate issued by a local government body like Municipal Corporation
	c) Medical Records (Admission Notes, Discharge/Death Summary, Indoor Case Papers, Test Reports etc) ¹

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	d) Claimant's Photo ID with age proof & relationship with the Insured along with Address proof of the claimant and Cancelled cheque with name and account number printed or cancelled cheque with copy of Bank Passbook / Bank Statement If no nomination - Proof of legal title to the claim proceeds (e.g. legal succession paper)
If Death due to Accident (to be submitted in addition to the above)	e) In case of accidental death in addition to the above documents, we would require the following documents - - Postmortem report (Autopsy report) & Chemical Viscera report - if performed; - All Police Papers – Panchnama, Inquest, First Information Report (FIR) and Final Investigation Report.

¹*This is applicable if insured was in hospital at the time of death or any time prior to the date of death.*

Please submit copies of the following documents certified / attested by the issuing authority. (Original Seen Verified (OSV) by Branch Personnel will also be accepted) –

- All Police papers – Panchnama, Inquest, First Information Report and Final Investigation Report.
- Medical Records (Admission Notes, Discharge/Death Summary, Indoor Case Papers, Test Reports etc).
- Postmortem report (Autopsy report) & Chemical Viscera report (certified by Police / Magistrate / Court will also be accepted)

Copies of the other documents to be submitted by self-attestation of the claimant

Note-

In case the claim warrants any additional requirement, We reserve the right to call for the same.

Notification of claim & submission of the claim requirements does not mean admission of the claim liability by the Company.

No agent is authorized to admit any liabilities on behalf of the Company, nor to alter this list of documents or any claims requirements called for by the Company.

5.10. Claims Intimation Process

Mentioned below is a list of various mediums through which Claimant can contact us.

- Online at www.tataaia.com
- Email - Customercare@tataaia.com
- Call our helpline number 1-860-266-9966 (local charges apply)
- Walk into any office of the Company
- Write directly to us on following address:

Tata AIA Life Insurance Company Limited
B - Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra.

5.11. Governing Law and Jurisdiction

The Policy will be governed by and enforced in accordance with the laws of India. The competent courts in India will have exclusive jurisdiction in all matters and causes arising out of the Policy.

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6.PART G

CONSUMER INFORMATION

POLICYHOLDER'S SERVICING

With regards to any query or issue related to the Policy, the Policyholder can contact the Company through the following service avenues:

- Contact your Tata AIA Life Agent / Distributor
- Call our helpline number 1-860-266-9966 (local charges apply)
- E-mail us at customercare@tataaia.com
- Visit the nearest Tata AIA Life branch or CAMS Service Center
- Log on to Online Customer Portal by visiting www.tataaia.com
- Write to us on the following address:

Tata AIA Life Insurance Company Limited
B- Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra.

GRIEVANCE REDRESSAL PROCEDURE

1) Resolution of Grievances

Customers can register their grievances through Multiple Service Avenues:

- Call our helpline number 1-860-266-9966 (local charges apply)
- Email us at life.complaints@tataaia.com
- Login to online Policy account on www.tataaia.com
- SMS SERVICE to 58888 to receive a call back from our Customer Service Representative
- Visit any of the nearest Tata AIA Life branches or CAMS Service Centers
- Contact your Tata AIA Life Agent / Distributor
- Write to us on the following address:

Grievance Redressal Department
Tata AIA Life Insurance Company Limited
B- Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra.

- We shall acknowledge a customer's grievance within 3 (three) business days by providing the customer with the name of the Grievance Redressal Executive who is responsible to handle the grievance.
- We shall provide the customer with an equitable resolution within 2 (two) weeks of receipt of the grievance.
- In case customer wishes to contact us during the course of the assessment, they can contact us at any of the above mentioned touch points.
- All Tata AIA Life branches have a Grievance Redressal Officer who can be contacted for any support during the grievance redressal process.

2) Escalation Mechanism

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In case customers are not satisfied with the decision of the above offices, or has not received any response within the stipulated timelines, they may contact the following officials for resolution:

- 1st level of Escalation: Sr. Manager- Customer Service
- 2nd level of Escalation: Head - Customer Service
- 3rd level of Escalation: Grievance Redressal Officer (GRO)

For escalations, customers can email to head.customerservice@tataaia.com or write to –
Grievance Redressal Officer
Tata AIA Life Insurance Company Limited,
B-Wing, 9th Floor, I-Think Techno Campus,
Behind TCS, Pokhran Road No.2,
Close to Eastern Express Highway,
Thane (West) – 400 607, Maharashtra

We request our customers to follow the escalation mechanism in case of non-receipt of response or unsatisfactory response from the concerned persons mentioned above.

If you are not satisfied with the response or do not receive a response from us within 15 (fifteen) days, you may approach the Grievance Cell of the Insurance Regulatory and Development Authority of India (IRDAI) on the following contact details:

IRDAI Grievance Call Centre (IGCC) TOLL FREE NO: 155255 or 18004254732 (Toll free).
Email ID: complaints@irda.gov.in

You can also register your complaint online at <http://www.igms.irda.gov.in/>

Address for communication for complaints by fax/paper:
Consumer Affairs Department - Grievance Redressal Cell.
Insurance Regulatory and Development Authority of India
Sy.No.115/1, Financial District, Nanakramguda,
Gachibowli, Hyderabad – 500 032.

3) Insurance Ombudsman:

Where the redressal provided by the Company is not satisfactory despite the escalation above, the customer may represent the case to the Ombudsman for Redressal of the grievance, if it pertains to the following:

- Delay in settlement of claim
- Partial or total rejection of claim
- Dispute with regard to premium
- Misrepresentation of policy terms and conditions
- Legal construction of the policy in so far as dispute relates to claim
- Grievance relating to policy servicing
- Issuance of policy which is not in conformity with proposal form
- Non- issuance of your insurance document and
- Any other matter resulting from the violation of provisions of the Insurance Act, 1938 or the regulations, circulars, guidelines or instructions issued by the IRDAI from time to time or the terms and conditions of the policy contract, in so far as they relate to issues mentioned herein above.

Policy Document - Tata AIA Life Guaranteed Return Insurance Plan (110N152V04)

Please refer to our website www.tataaia.com for further details in this regard.

The list of Ombudsman address is attached as **Annexure 1**

The complaint should be made in writing duly signed by the complainant or through his legal heirs, nominee or assignee, and shall state clearly the name and address of the complainant, the name of the branch or office of the insurer against whom the complaint is made, the facts giving rise to the complaint, supported by documents, the nature and extent of the loss caused to the complainant and the relief sought from the Insurance Ombudsman. As per provision 14(3) of the Insurance Ombudsman Rules, 2017, the complaint to the Ombudsman can be made, within a period of one year provided it is not simultaneously under any litigation:

- Only if the grievance has been rejected by the Grievance Redressal Machinery of the Insurer; or
- the complainant had not received any reply within a period of one month after the Insurer received his representation; or
- the complainant is not satisfied with the reply given to him by the insurer.

Policy Document - Tata AIA Life Guaranteed Return Insurance Plan (110N152V04)

ANNEXURE A

Guaranteed Maturity Benefit Factors

For Option I:

Age at Entry	Premium Payment Term			Age at Entry	Premium Payment Term		
	5	6	10		5	6	10
0	91.91%	95.50%	115.75%	32	91.91%	95.50%	115.75%
1	91.91%	95.50%	115.75%	33	91.91%	95.50%	115.75%
2	91.91%	95.50%	115.75%	34	91.91%	95.50%	115.75%
3	91.91%	95.50%	115.75%	35	91.91%	95.50%	115.75%
4	91.91%	95.50%	115.75%	36	91.91%	95.50%	115.75%
5	91.91%	95.50%	115.75%	37	91.91%	95.50%	115.75%
6	91.91%	95.50%	115.75%	38	91.91%	95.50%	115.75%
7	91.91%	95.50%	115.75%	39	91.91%	95.50%	115.75%
8	91.91%	95.50%	115.75%	40	91.91%	95.50%	115.75%
9	91.91%	95.50%	115.75%	41	91.91%	95.50%	115.75%
10	91.91%	95.50%	115.75%	42	91.91%	95.50%	115.75%
11	91.91%	95.50%	115.75%	43	91.91%	95.50%	115.75%
12	91.91%	95.50%	115.75%	44	91.91%	95.50%	115.75%
13	91.91%	95.50%	115.75%	45	91.91%	95.50%	115.75%
14	91.91%	95.50%	115.75%	46	91.91%	95.50%	115.75%
15	91.91%	95.50%	115.75%	47	91.91%	95.50%	115.75%
16	91.91%	95.50%	115.75%	48	91.91%	95.50%	115.75%
17	91.91%	95.50%	115.75%	49	91.91%	95.50%	115.75%
18	91.91%	95.50%	115.75%	50	91.91%	95.50%	115.75%
19	91.91%	95.50%	115.75%	51	90.91%	94.50%	114.40%
20	91.91%	95.50%	115.75%	52	90.91%	94.50%	114.40%
21	91.91%	95.50%	115.75%	53	90.91%	94.50%	114.40%
22	91.91%	95.50%	115.75%	54	90.91%	94.50%	114.40%
23	91.91%	95.50%	115.75%	55	90.91%	94.50%	114.40%
24	91.91%	95.50%	115.75%	56	89.91%	93.50%	-
25	91.91%	95.50%	115.75%	57	89.91%	93.50%	-
26	91.91%	95.50%	115.75%	58	89.91%	93.50%	-
27	91.91%	95.50%	115.75%	59	89.91%	93.50%	-
28	91.91%	95.50%	115.75%	60	89.91%	93.50%	-
29	91.91%	95.50%	115.75%	-	-	-	-
30	91.91%	95.50%	115.75%	-	-	-	-
31	91.91%	95.50%	115.75%	-	-	-	-

For Option III:

- Single Life -

Age	GMB
45	12.88
46	12.78
47	12.69
48	12.59

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Age	GMB
49	12.48
50	12.38
51	12.27
52	12.16
53	12.04
54	11.92
55	11.8
56	11.67
57	11.54
58	11.4
59	11.26
60	11.12
61	10.97
62	10.82
63	10.66
64	10.5
65	10.34

- Joint Life –

Primary Life Age / Secondary Life Age	45	46	47	48	49	50	51	52	53	54	55
45	13.74	13.71	13.68	13.64	13.61	13.58	13.55	13.52	13.49	13.46	13.43
46	13.71	13.67	13.64	13.60	13.57	13.54	13.50	13.47	13.44	13.41	13.38
47	13.68	13.64	13.60	13.56	13.53	13.49	13.46	13.42	13.39	13.36	13.33
48	13.64	13.60	13.56	13.52	13.49	13.45	13.41	13.38	13.34	13.31	13.27
49	13.61	13.57	13.53	13.49	13.45	13.41	13.37	13.33	13.29	13.26	13.22
50	13.58	13.54	13.49	13.45	13.41	13.37	13.32	13.28	13.25	13.21	13.17
51	13.55	13.50	13.46	13.41	13.37	13.32	13.28	13.24	13.20	13.16	13.12
52	13.52	13.47	13.42	13.38	13.33	13.28	13.24	13.20	13.15	13.11	13.07
53	13.49	13.44	13.39	13.34	13.29	13.25	13.20	13.15	13.11	13.06	13.02
54	13.46	13.41	13.36	13.31	13.26	13.21	13.16	13.11	13.06	13.01	12.97
55	13.43	13.38	13.33	13.27	13.22	13.17	13.12	13.07	13.02	12.97	12.92
56	13.40	13.35	13.29	13.24	13.19	13.13	13.08	13.02	12.97	12.92	12.87
57	13.38	13.32	13.26	13.21	13.15	13.10	13.04	12.98	12.93	12.87	12.82
58	13.35	13.29	13.24	13.18	13.12	13.06	13.00	12.94	12.89	12.83	12.77
59	13.33	13.27	13.21	13.15	13.09	13.03	12.96	12.90	12.84	12.78	12.73
60	13.30	13.24	13.18	13.12	13.05	12.99	12.93	12.87	12.80	12.74	12.68
61	13.28	13.22	13.15	13.09	13.02	12.96	12.89	12.83	12.76	12.70	12.63
62	13.26	13.19	13.13	13.06	12.99	12.93	12.86	12.79	12.72	12.66	12.59
63	13.23	13.17	13.10	13.03	12.96	12.89	12.83	12.76	12.69	12.62	12.55
64	13.21	13.14	13.07	13.00	12.93	12.86	12.79	12.72	12.65	12.58	12.50
65	13.19	13.12	13.05	12.98	12.91	12.83	12.76	12.69	12.61	12.54	12.46

Policy Document - Tata AIA Life Guaranteed Return Insurance Plan (110N152V04)

Primary Life Age / Secondary Life Age	56	57	58	59	60	61	62	63	64	65
45	13.40	13.38	13.35	13.33	13.30	13.28	13.26	13.23	13.21	13.19
46	13.35	13.32	13.29	13.27	13.24	13.22	13.19	13.17	13.14	13.12
47	13.29	13.26	13.24	13.21	13.18	13.15	13.13	13.10	13.07	13.05
48	13.24	13.21	13.18	13.15	13.12	13.09	13.06	13.03	13.00	12.98
49	13.19	13.15	13.12	13.09	13.05	13.02	12.99	12.96	12.93	12.91
50	13.13	13.10	13.06	13.03	12.99	12.96	12.93	12.89	12.86	12.83
51	13.08	13.04	13.00	12.96	12.93	12.89	12.86	12.83	12.79	12.76
52	13.02	12.98	12.94	12.90	12.87	12.83	12.79	12.76	12.72	12.69
53	12.97	12.93	12.89	12.84	12.80	12.76	12.72	12.69	12.65	12.61
54	12.92	12.87	12.83	12.78	12.74	12.70	12.66	12.62	12.58	12.54
55	12.87	12.82	12.77	12.73	12.68	12.63	12.59	12.55	12.50	12.46
56	12.82	12.77	12.72	12.67	12.62	12.57	12.52	12.48	12.43	12.39
57	12.77	12.71	12.66	12.61	12.56	12.50	12.45	12.41	12.36	12.31
58	12.72	12.66	12.60	12.55	12.49	12.44	12.39	12.34	12.28	12.23
59	12.67	12.61	12.55	12.49	12.43	12.38	12.32	12.27	12.21	12.16
60	12.62	12.56	12.49	12.43	12.37	12.31	12.25	12.20	12.14	12.08
61	12.57	12.50	12.44	12.38	12.31	12.25	12.19	12.13	12.07	12.01
62	12.52	12.45	12.39	12.32	12.25	12.19	12.12	12.06	11.99	11.93
63	12.48	12.41	12.34	12.27	12.20	12.13	12.06	11.99	11.92	11.85
64	12.43	12.36	12.28	12.21	12.14	12.07	11.99	11.92	11.85	11.78
65	12.39	12.31	12.23	12.16	12.08	12.01	11.93	11.85	11.78	11.70

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**ANNEXURE B
Surrender Value Factors**

GSV factors on Premiums:

Policy Year	Option: 1	Option: 1	Option: 1	Option: 2	Option: 2	Option: 3	Option: 3
	PPT: 5	PPT: 6	PPT: 10	PPT: 10	PPT: 12	PPT: 1	PPT: 5
	PT: 10	PT: 12	PT: 20	PT: 11	PT: 13	PT: 5	PT: 5
1	0%	0%	0%	0%	0%	75%	0%
2	30%	30%	30%	30%	30%	75%	30%
3	35%	35%	35%	35%	35%	75%	35%
4	50%	50%	50%	50%	50%	90%	90%
5	50%	50%	50%	50%	50%	90%	90%
6	50%	50%	50%	50%	50%		
7	50%	50%	50%	50%	50%		
8	70%	60%	53%	63%	58%		
9	90%	70%	57%	77%	66%		
10	90%	80%	60%	90%	74%		
11		90%	63%	90%	82%		
12		90%	67%		90%		
13			70%		90%		
14			73%				
15			77%				
16			80%				
17			83%				
18			87%				
19			90%				
20			90%				

SSV Factors:

Policy Year	Option: 1	Option: 1	Option: 1	Option: 2	Option: 2	Option: 3	Option: 3
	PPT: 5	PPT: 6	PPT: 10	PPT: 10	PPT: 12	PPT: 1	PPT: 5
	PT: 10	PT: 12	PT: 20	PT: 11	PT: 13	PT: 5	PT: 5
1	46%*	38%*	20%*	42%*	36%*	71%	71%*
2	50%	42%	22%	46%	39%	77%	77%
3	54%	46%	24%	50%	42%	84%	84%
4	59%	50%	26%	55%	46%	92%	92%
5	65%	54%	28%	60%	50%	100%	100%
6	70%	59%	31%	65%	55%		
7	77%	65%	33%	71%	60%		
8	84%	70%	36%	77%	65%		
9	92%	77%	39%	84%	71%		
10	100%	84%	43%	92%	77%		

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Policy Year	Option: 1	Option: 1	Option: 1	Option: 2	Option: 2	Option: 3	Option: 3
	PPT: 5	PPT: 6	PPT: 10	PPT: 10	PPT: 12	PPT: 1	PPT: 5
	PT: 10	PT: 12	PT: 20	PT: 11	PT: 13	PT: 5	PT: 5
11		92%	47%	100%	84%		
12		100%	51%		92%		
13			55%		100%		
14			60%				
15			65%				
16			71%				
17			77%				
18			84%				
19			92%				
20			100%				

**applicable provided the Policy has acquired a Surrender Value and used for interpolation purposes only.*

GSV Factors on Guaranteed Additions:

Policy Year	Option: 1	Option: 1	Option: 1
	PPT: 5	PPT: 6	PPT: 10
	PT: 10	PT: 12	PT: 20
1	0.00%	0.00%	0.00%
2	14.50%	12.10%	5.80%
3	15.90%	13.20%	6.40%
4	17.40%	14.50%	7.00%
5	19.00%	15.90%	7.70%
6	20.80%	17.40%	8.40%
7	22.80%	19.00%	9.20%
8	25.00%	20.80%	10.10%
9	27.40%	22.80%	11.10%
10	30.00%	25.00%	12.10%
11		27.40%	13.20%
12		30.00%	14.50%
13			15.90%
14			17.40%
15			19.00%
16			20.80%
17			22.80%
18			25.00%
19			27.40%
20			30.00%

The Company may revise the SSV factors from time to time. However, any change in the methodology/formula for calculating SSV factors shall be subject to IRDAI approval. Any change in SSV factors shall be filed with the Authority and shall be intimated to You from time to time..

Basis of calculation of SSV and GSV-

- **GSV:** Calculated in line with the Section 35 of the IRDAI (NLIP) Regulation, 2013.
- **SSV:** Ax:n factors based on an average age of 45 years determined on the following basis –

Policy Document - Tata AIA Life Guaranteed Return Insurance Plan (110N152V04)

- Mortality: 35% of IALM 06-08 Ult
- Interest Rate: Pricing Interest Rate + 2%

The above SSV factors are applicable at the end of the year and shall be interpolated, on a daily basis, to arrive at the factors applicable at the time of surrender.

SAMPLE

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Annexure 1

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office Union Territory, District)
AHMEDABAD	Office of the Insurance Ombudsman, Jeevan Prakash Building, 6th floor, Tilak Marg, Relief Road, Ahmedabad – 380 001. Tel.: 079 - 25501201/02/05/06 Email: bimalokpal.ahmedabad@ecoi.co.in	Gujarat, Dadra & Nagar Haveli, Daman and Diu.
BENGALURU	Office of the Insurance Ombudsman, Jeevan Soudha Building, PID No. 57-27-N-19 Ground Floor, 19/19, 24th Main Road, JP Nagar, Ist Phase, Bengaluru – 560 078. Tel.: 080 - 26652048 / 26652049 Email: bimalokpal.bengaluru@ecoi.co.in	Karnataka.
BHOPAL	Office of the Insurance Ombudsman, Janak Vihar Complex, 2nd Floor, 6, Malviya Nagar, Opp. Airtel Office, Near New Market, Bhopal – 462 003. Tel.: 0755 - 2769201 / 2769202 Fax: 0755 - 2769203 Email: bimalokpal.bhopal@ecoi.co.in	Madhya Pradesh Chattisgarh.
BHUBANESHWAR	Office of the Insurance Ombudsman, 62, Forest park, Bhubneshwar – 751 009. Tel.: 0674 - 2596461 /2596455 Fax: 0674 - 2596429 Email: bimalokpal.bhubaneswar@ecoi.co.in	Orissa.
CHANDIGARH	Office of the Insurance Ombudsman, S.C.O. No. 101, 102 & 103, 2nd Floor, Batra Building, Sector 17 – D, Chandigarh – 160 017. Tel.: 0172 - 2706196 / 2706468 Fax: 0172 - 2708274 Email: bimalokpal.chandigarh@ecoi.co.in	Punjab, Haryana, Himachal Pradesh, Jammu & Kashmir, Chandigarh.
CHENNAI	Office of the Insurance Ombudsman, Fatima Akhtar Court, 4th Floor, 453, Anna Salai, Teynampet, CHENNAI – 600 018. Tel.: 044 - 24333668 / 24335284 Fax: 044 - 24333664 Email: bimalokpal.chennai@ecoi.co.in	Tamil Nadu, Pondicherry Town and Karaikal (which are part of Pondicherry).
DELHI	Office of the Insurance Ombudsman, 2/2 A, Universal Insurance Building, Asaf Ali Road, New Delhi – 110 002. Tel.: 011 - 23232481/23213504 Email: bimalokpal.delhi@ecoi.co.in	Delhi.
GUWAHATI	Office of the Insurance Ombudsman, Jeevan Nivesh, 5th Floor, Nr. Panbazar over bridge, S.S. Road, Guwahati – 781001(ASSAM). Tel.: 0361 - 2132204 / 2132205 Fax: 0361 - 2732937 Email: bimalokpal.guwahati@ecoi.co.in	Assam, Meghalaya, Manipur, Mizoram, Arunachal Pradesh, Nagaland and Tripura.

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office Union Territory, District)
HYDERABAD	Office of the Insurance Ombudsman, 6-2-46, 1st floor, "Moin Court", Lane Opp. Saleem Function Palace, A. C. Guards, Lakdi-Ka-Pool, Hyderabad - 500 004. Tel.: 040 - 67504123 / 23312122 Fax: 040 - 23376599 Email: bimalokpal.hyderabad@ecoi.co.in	Andhra Pradesh, Telangana, Yanam and part of Territory of Pondicherry.
JAIPUR	Office of the Insurance Ombudsman, Jeevan Nidhi – II Bldg., Gr. Floor, Bhawani Singh Marg, Jaipur - 302 005. Tel.: 0141 - 2740363 Email: Bimalokpal.jaipur@ecoi.co.in	Rajasthan.
ERNAKULAM	Office of the Insurance Ombudsman, 2nd Floor, Pulinat Bldg., Opp. Cochin Shipyard, M. G. Road, Ernakulam - 682 015. Tel.: 0484 - 2358759 / 2359338 Fax: 0484 - 2359336 Email: bimalokpal.ernakulam@ecoi.co.in	Kerala, Lakshadweep, Mahe-a part of Pondicherry.
KOLKATA	Office of the Insurance Ombudsman, Hindustan Bldg. Annexe, 4th Floor, 4, C.R. Avenue, KOLKATA - 700 072. Tel.: 033 - 22124339 / 22124340 Fax : 033 - 22124341 Email: bimalokpal.kolkata@ecoi.co.in	West Bengal, Sikkim, Andaman & Nicobar Islands.
LUCKNOW	Office of the Insurance Ombudsman, 6th Floor, Jeevan Bhawan, Phase-II, Nawal Kishore Road, Hazratganj, Lucknow - 226 001. Tel.: 0522 - 2231330 / 2231331 Fax: 0522 - 2231310 Email: bimalokpal.lucknow@ecoi.co.in	Districts of Uttar Pradesh : Laitpur, Jhansi, Mahoba, Hamirpur, Banda, Chitrakoot, Allahabad, Mirzapur, Sonbhadra, Fatehpur, Pratapgarh, Jaunpur, Varanasi, Gazipur, Jalaun, Kanpur, Lucknow, Unnao, Sitapur, Lakhimpur, Bahraich, Barabanki, Raebareli, Sravasti, Gonda, Faizabad, Amethi, Kaushambi, Balrampur, Basti, Ambedkarnagar, Sultanpur, Maharajgang, Santkabirnagar, Azamgarh, Kushinagar, Gorkhpur, Deoria, Mau, Ghazipur, Chandauli, Ballia, Sidharathnagar.
MUMBAI	Office of the Insurance Ombudsman, 3rd Floor, Jeevan Seva Annexe, S. V. Road, Santacruz (W), Mumbai - 400 054. Tel.: 022 - 26106552 / 26106960 Fax: 022 - 26106052 Email: bimalokpal.mumbai@ecoi.co.in	Goa, Mumbai Metropolitan Region excluding Navi Mumbai & Thane.

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
NOIDA	Office of the Insurance Ombudsman, Bhagwan Sahai Palace 4th Floor, Main Road, Naya Bans, Sector 15, Distt: Gautam Buddh Nagar, U.P.-201301. Tel.: 0120-2514250 / 2514252 / 2514253 Email: bimalokpal.noida@ecoi.co.in	State of Uttaranchal and the following Districts of Uttar Pradesh: Agra, Aligarh, Bagpat, Bareilly, Bijnor, Budaun, Bulandshehar, Etah, Kanooj, Mainpuri, Mathura, Meerut, Moradabad, Muzaffarnagar, Oraiyya, Pilibhit, Etawah, Farrukhabad, Firozbad, Gautambodhanagar, Ghaziabad, Hardoi, Shahjahanpur, Hapur, Shamli, Rampur, Kashganj, Sambhal, Amroha, Hathras, Kanshiramnagar, Saharanpur.
PATNA	Office of the Insurance Ombudsman, 1st Floor, Kalpana Arcade Building,, Bazar Samiti Road, Bahadurpur, Patna 800 006. Tel.: 0612-2680952 Email: bimalokpal.patna@ecoi.co.in	Bihar, Jharkhand.
PUNE	Office of the Insurance Ombudsman, Jeevan Darshan Bldg., 3rd Floor, C.T.S. No.s. 195 to 198, N.C. Kelkar Road, Narayan Peth, Pune – 411 030. Tel.: 020-41312555 Email: bimalokpal.pune@ecoi.co.in	Maharashtra, Area of Navi Mumbai and Thane excluding Mumbai Metropolitan Region.

For further information or latest updated list of Ombudsman Office addresses, kindly visit the IRDAI website <http://www.Policyholder.gov.in/> - Ombudsman / List of Insurance Ombudsmen OR our website www.tataaia.com

Annexure 2

A. Section 38 - Assignment and Transfer of Insurance Policies

Assignment or transfer of a Policy should be in accordance with Section 38 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

01. This Policy may be transferred/assigned, wholly or in part, with or without consideration.
02. An Assignment may be effected in a Policy by an endorsement upon the Policy itself or by a separate instrument under notice to the Insurer.
03. The instrument of assignment should indicate the fact of transfer or assignment and the reasons for the assignment or transfer, antecedents of the assignee and terms on which assignment is made.
04. The assignment must be signed by the transferor or assignor or duly authorized agent and attested by at least one witness.
05. The transfer of assignment shall not be operative as against an insurer until a notice in writing of the transfer or assignment and either the said endorsement or instrument itself or copy thereof certified to be correct by both transferor and transferee or their duly authorised agents have been delivered to the insurer.
06. Fee to be paid for assignment or transfer can be specified by the Authority through Regulations.
07. On receipt of notice with fee, the insurer should Grant a written acknowledgement of receipt of notice. Such notice shall be conclusive evidence against the insurer of duly receiving the notice.
08. If the insurer maintains one or more places of business, such notices shall be delivered only at the place where the Policy is being serviced.
09. The insurer may accept or decline to act upon any transfer or assignment or endorsement, if it has sufficient reasons to believe that it is
 - a. not bonafide or
 - b. not in the interest of the Policyholder or
 - c. not in public interest or
 - d. is for the purpose of trading of the Insurance Policy.
10. Before refusing to act upon endorsement, the Insurer should record the reasons in writing and communicate the same in writing to Policyholder within 30 days from the date of Policyholder giving a notice of transfer or assignment.
11. In case of refusal to act upon the endorsement by the Insurer, any person aggrieved by the refusal may prefer a claim to IRDAI within 30 days of receipt of the refusal letter from the Insurer.
12. The priority of claims of persons interested in an Insurance Policy would depend on the date on which the notices of assignment or transfer is delivered to the insurer; where there are more than one instruments of transfer or assignment, the priority will depend on dates of delivery of such notices. Any dispute in this regard as to priority should be referred to Authority.
13. Every assignment or transfer shall be deemed to be absolute assignment or transfer and the assignee or transferee shall be deemed to be absolute assignee or transferee, except

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- a. where assignment or transfer is subject to terms and conditions of transfer or assignment OR
 - b. where the transfer or assignment is made upon condition that
 - i. the proceeds under the Policy shall become payable to Policyholder or nominee(s) in the event of assignee or transferee dying before the Life Assured OR
 - ii. the Life Assured surviving the term of the Policy
- Such conditional assignee will not be entitled to obtain a loan on Policy or surrender the Policy. This provision will prevail notwithstanding any law or custom having force of law which is contrary to the above position.
14. In other cases, the insurer shall, subject to terms and conditions of assignment, recognize the transferee or assignee named in the notice as the absolute transferee or assignee and such person
- a. shall be subject to all liabilities and equities to which the transferor or assignor was subject to at the date of transfer or assignment and
 - b. may institute any proceedings in relation to the Policy
 - c. obtain loan under the Policy or surrender the Policy without obtaining the consent of the transferor or assignor or making him a party to the proceedings
15. Any rights and remedies of an assignee or transferee of a life Insurance Policy under an assignment or transfer effected before commencement of the Insurance Laws (Amendment) Act, 2015 shall not be affected by this section.

[Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015 and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]

Annexure 3

B. Section 39 - Nomination by Policyholder

Nomination of a life Insurance Policy is as below in accordance with Section 39 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

01. The Policyholder of a life Insurance on his own life may nominate a person or persons to whom money secured by the Policy shall be paid in the event of his death.
02. Where the nominee is a minor, the Policyholder may appoint any person to receive the money secured by the Policy in the event of Policyholder's death during the minority of the nominee. The manner of appointment to be laid down by the insurer.
03. Nomination can be made at any time before the maturity of the Policy.
04. Nomination may be incorporated in the text of the Policy itself or may be endorsed on the Policy communicated to the insurer and can be registered by the insurer in the records relating to the Policy.
05. Nomination can be cancelled or changed at any time before Policy matures, by an endorsement or a further endorsement or a will as the case may be.
06. A notice in writing of Change or Cancellation of nomination must be delivered to the insurer for the insurer to be liable to such nominee. Otherwise, insurer will not be liable if a bonafide payment is made to the person named in the text of the Policy or in the registered records of the insurer.
07. Fee to be paid to the insurer for registering change or cancellation of a nomination can be specified by the Authority through Regulations.
08. On receipt of notice with fee, the insurer should grant a written acknowledgement to the Policyholder of having registered a nomination or cancellation or change thereof.
09. A transfer or assignment made in accordance with Section 38 shall automatically cancel the nomination except in case of assignment to the insurer or other transferee or assignee for purpose of loan or against security or its reassignment after repayment. In such case, the nomination will not get cancelled to the extent of insurer's or transferee's or assignee's interest in the Policy. The nomination will get revived on repayment of the loan.
10. The right of any creditor to be paid out of the proceeds of any Policy of life Insurance shall not be affected by the nomination.
11. In case of nomination by Policyholder whose life is insured, if the nominees die before the Policyholder, the proceeds are payable to Policyholder or his heirs or legal representatives or holder of succession certificate.
12. In case nominee(s) survive the person whose life is insured, the amount secured by the Policy shall be paid to such survivor(s).
13. Where the Policyholder whose life is Life Assured nominates his
 - a. parents or
 - b. spouse or
 - c. children or
 - d. spouse and children

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e. or any of them

the nominees are beneficially entitled to the amount payable by the insurer to the Policyholder unless it is proved that Policyholder could not have conferred such beneficial title on the nominee having regard to the nature of his title.

14. If nominee(s) die after the Policyholder but before his share of the amount secured under the Policy is paid, the share of the expired nominee(s) shall be payable to the heirs or legal representative of the nominee or holder of succession certificate of such nominee(s).

15. The provisions of sub-section 7 and 8 (13 and 14 above) shall apply to all life Insurance policies maturing for payment after the commencement of Insurance Laws (Amendment) Act, 2015.

16. If Policyholder dies after maturity but the proceeds and benefit of the Policy has not been paid to him because of his death, his nominee(s) shall be entitled to the proceeds and benefit of the Policy.

17. The provisions of Section 39 are not applicable to any life Insurance Policy to which Section 6 of Married Women's Property Act, 1874 applies or has at any time applied except where before or after Insurance Laws (Amendment) Act, 2015., a nomination is made in favour of spouse or children or spouse and children whether or not on the face of the Policy it is mentioned that it is made under Section 39. Where nomination is intended to be made to spouse or children or spouse and children under Section 6 of MWP Act, it should be specifically mentioned on the Policy. In such a case only, the provisions of Section 39 will not apply.

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Annexure 4

C. Section 45 – Policy shall not be called in question on the ground of mis-statement after three years

Provisions regarding Policy not being called into question in terms of Section 45 of the Insurance Act, 1938, as amended by Insurance Laws (Amendment) Act, 2015 are as follows:

01. No Policy of Life Insurance shall be called in question **on any ground whatsoever** after expiry of 3 yrs from

- a. the date of issuance of Policy or
 - b. the date of commencement of risk or
 - c. the date of revival of Policy or
 - d. the date of rider to the Policy
- whichever is later.

02. On the ground of fraud, a Policy of Life Insurance may be called in question within 3 years from

- a. the date of issuance of Policy or
 - b. the date of commencement of risk or
 - c. the date of revival of Policy or
 - d. the date of rider to the Policy
- whichever is later.

For this, the insurer should communicate in writing to the Life Assured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which such decision is based.

03. Fraud means any of the following acts committed by Life Assured or by his agent, with the intent to deceive the insurer or to induce the insurer to issue a life Insurance Policy:

- a. The suggestion, as a fact of that which is not true and which the Life Assured does not believe to be true;
- b. The active concealment of a fact by the Life Assured having knowledge or belief of the fact;
- c. Any other act fitted to deceive; and
- d. Any such act or omission as the law specifically declares to be fraudulent.

04. Mere silence is not fraud unless, depending on circumstances of the case, it is the duty of the Life Assured or his agent keeping silence to speak or silence is in itself equivalent to speak.

05. No Insurer shall repudiate a life Insurance Policy on the ground of Fraud, if the Life Assured/ beneficiary can prove that the misstatement was true to the best of his knowledge and there was no deliberate intention to suppress the fact or that such mis-statement of or suppression of material fact are within the knowledge of the insurer. Onus of disproving is upon the Policyholder, if alive, or beneficiaries.

06. Life Insurance Policy can be called in question within 3 years on the ground that any statement of or suppression of a fact material to expectancy of life of the Life Assured was incorrectly made in the proposal or other document basis which Policy was issued or revived or rider issued. For this, the insurer should communicate in writing to the Life Assured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which decision to repudiate the Policy of life Insurance is based.

07. In case repudiation is on ground of mis-statement and not on fraud, the premium collected on Policy till the date of repudiation shall be paid to the Life Assured or legal representative or nominee or assignees of insured, within a period of 90 days from the date of repudiation.

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08. Fact shall not be considered material unless it has a direct bearing on the risk undertaken by the insurer. The onus is on insurer to show that if the insurer had been aware of the said fact, no life Insurance Policy would have been issued to the insured.

09. The insurer can call for proof of age at any time if he is entitled to do so and no Policy shall be deemed to be called in question merely because the terms of the Policy are adjusted on subsequent proof of age of Life Insured. So, this Section will not be applicable for questioning age or adjustment based on proof of age submitted subsequently.

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